

FEDERAL MARITIME COMMISSION

USL AUTO EXPORTING INC., <i>Complainant</i>	)	
	)	
Plaintiff,	)	
	)	
vs.	)	DOCKET NO. 23-13
	)	
EASY SHIPPING CORPORATION, <i>Respondent</i>	)	
	)	
Defendant.	)	

RESPONDENT’S RESPONSE TO COMPLAINANT’S MOTION FOR SUMMARY JUDGMENT

NOW COMES the Respondent, EASY SHIPPING CORPORATION, by and through their attorney, RAFATI, WARD & ASSOCIATES, P.C., and for their Response in Opposition to Complainant’s Motion for Summary Judgment, and state as follows:

STANDARD OF LAW

Summary judgment is proper if, and only if, the pleadings, depositions, affidavits and other relevant matters on file show that there is no genuine issue of material fact, and that the movant is entitled to judgment as a matter of law. *Prowell v. Loretto Hospital*, 339 Ill. App. 3d 817, 822, 791 N.E.2d 1261, 1265 (2003). In determining whether a genuine issue of material fact exists, a court must construe the pleadings, admissions and affidavits strictly against the movant and liberally in favor of the opponent. *Prowell*, 339 Ill. App. 3d at 822.

The purpose of summary judgment is not to try a question of fact but to determine if one exists. *Gilbert v. Sycamore Municipal Hospital*, 156 Ill.2d 511, 517, 622 N.E.2d 788, 792 (1993). A triable issue precluding summary judgment exists where the material facts are disputed or, where the material facts are undisputed, reasonable persons might draw different inferences from the undisputed facts. *Id at 518*. Summary judgment should only be allowed when the right of the moving party is clear and free from doubt. *Id*.

INTRODUCTION AND FACTUAL BACKGROUND

Defendant, EASY SHIPPING CORPORATION (hereinafter referred to as “Easy Shipping”) is a United States corporation formed in Illinois. Easy Shipping is a licensed non vessel ocean carrier that performs all the services of a carrier and freight forwarder under 46 CFR § 515.11 and 46 CFR §515.21. Plaintiff, USL AUTO EXPORTING INC. (hereinafter referred to as “USL”) is a North Carolina limited liability company. USL exports vehicles from the United States to other foreign countries. USL is a cargo owner as defined by 46 U.S.C. § 40102(22).

On or about April 13, 2023, Khalid Arwini (“Khalid”) sent a request to Easy Shipping to ship four vehicles from Savannah, Georgia to Al Khoms, Libya by sending the request to Easy Shipping via email (See attached Exhibit A). Khalid requested that this shipment be setup with CMA CGM (“CMA”) as the ocean carrier. Easy Shipping began the booking process and began to gather information about the items to be shipped in order to submit this information to CMA. At all times relevant during the booking process, all information and documentation that was tendered to CMA as the ocean carrier was information provided to Easy Shipping by Khalid. Upon receipt of all the relevant information and documentation from Khalid, Easy Shipping secured the booking for Khalid with CMA. Easy Shipping sent Khalid a booking confirmation via email on April 17, 2023. The following day, Khalid began the process of loading the container under booking number NAM6206412. On or about April 20, 2023, the loader company prepared and loaded the container and provided Easy Shipping with a dock receipt of the booking. The next day, the container was loaded onto the vessel. On May 11, 2023, CMA CGM reached out to Easy Shipping and reported a misdeclaration in the shipping instructions for the cargo. Easy Shipping did not play any role in the transportation of the items,

warehousing of the items, loading the items into the container, nor in delivery of the container to the port of loading in Savannah, GA.

On or about May 11, 2023, CMA sent an email to Easy Shipping informing Easy Shipping that one of the items is prohibited from import into the country of Libya. Upon receiving this email, Easy Shipping forwarded the email immediately to Khalid. In response to this email from CMA, which was forwarded to Khalid, Khalid sent Easy Shipping a message stating that this is a mistake and the actual vehicle is a Toyota 4Runner and gave Easy Shipping a VIN number to this 4Runner which was then given to CMA. Sometime after May 11, 2023, and after Easy Shipping sent the VIN to CMA, CMA sent a second email, but this email was regarding a Yamaha which Khalid had listed as a Yamaha Motorcycle. CMA believed this item may be a Jet Ski or some type of water vehicle which is banned from import into Libya. Easy Shipping forwarded this email to Khalid and in response to this email, Khalid stated to Easy Shipping that “it may look like a jet ski because maybe the wheels are not on it.” Easy Shipping informed CMA of the same. CMA then sent a request to Easy Shipping asking for photographs of Yamaha. Easy Shipping forwarded this request to Khalid, and in response to this request, Khalid sent Easy Shipping two photographs of a Yamaha which were then forwarded to CMA.

In the end of May of 2023, CMA was still verifying and reviewing the booking. CMA informed Easy Shipping that they received the photographs and that after reviewing a decision will be made and CMA will inform Easy Shipping. At this juncture, Khalid was aware of all these developments and was directly giving Easy Shipping all of the information that he asked to be submitted to CMA. Khalid then wanted to bring the container back to Savannah and “fix things” and then resend the items. Khalid hired a third party that handles return shipments and imports into the United States as Easy Shipping does not offer those services, Khalid is aware of

this because Khalid has done business with Easy Shipping in the past on several occasions. Khalid hired a third party to work on getting the cargo back and then began to submit payments to Easy Shipping which were past due, this resulted in a late fee being assessed by CMA in the amount of \$75. Fast forward to July 6, 2023, Khalid seems to have secured the return of the cargo and reached out to Easy Shipping informing them the container is back in Savannah, GA although Easy Shipping had not received any communication from CMA regarding the release and return of the cargo. Approximately 2 months later, in September of 2023, Easy Shipping received an automated email from CMA informing Easy Shipping that the cargo had been returned and released in July of 2023. It is this time period between May of 2023 and September of 2023 that Easy Shipping believes Khalid was contacting and communicating with CMA as if he was Easy Shipping. This was later discovered when Khalid sent an email directly to CMA and when CMA replied to that email, they copied Easy Shipping on it. Upon learning of this and upon realizing that Khalid was submitting false information and impersonating himself as an employee/agent of Easy Shipping, Easy Shipping began to limit their communications and dealings with Khalid. Easy Shipping informed Khalid of the fees that need to be paid and upon Khalid paying the fees, they were immediately sent to CMA. Any payments that were late to CMA or delayed was because Khalid would be late in paying Easy Shipping.

ARGUMENT

The Complainant is not entitled to summary judgment. Disputed issues of material fact do exist and therefore should preclude judgment in favor of the Complainant. It is undisputed that the parties entered into a valid and enforceable contract on or about April 13, 2023. Complainant states that the Respondent's answer to their complaint shows that there are no factual disputes concerning the allegation that Respondent failed to perform under the contract.

However, there are many disputed issues of material fact in this case and many potentially fraudulent facts stated on the record within their pleading by the Respondent. One example of a key material fact that is in dispute is the actual damages incurred by the Respondent. Further, the Respondent in this case seems to have kept Khalid Arwini away from this litigation for some odd reason. One would assume that if a litigant is so confident in their claims and that all facts are undisputed and judgment should be rendered in their favor, that the person who has personal knowledge of these facts would participate in the litigation. Furthermore, Easy Shipping is of the opinion that the Complainant is knowingly submitting false information to this commission, and it is believed that this same Complainant may have done this purposefully. The Complainant is of Libyan descent, has contacts in Libya, and they have direct knowledge of all the rules, regulations, prohibitions, etc. of items that can or cannot be shipped into Libya. Further, Complainant has failed to inform this commission that they have retrieved their items and did not lose their cargo. It has also been uncovered that they are submitting false valuations for the items to the commission, these items are overvalued by the Complainant.

Easy Shipping has fulfilled all of their obligations to the Complainant and this Complainant has caused Easy Shipping to now be in collections with CMA for the demurrage fees. Complainant includes these fees in their damages but they have no such damages. This Complainant's claim of Breach of contract is unfounded as Easy Shipping has conducted themselves in the best way possible to represent this Complainant but at some point, Easy Shipping realized they may be representing someone who is in the process of committing fraud. This has become quite evident to Easy Shipping. Easy Shipping followed the correct procedures and mechanisms at all times even though it became obvious that the Complainant has fraudulently misrepresented the items to be shipped.

CONCLUSION

Complainant's Motion for Summary Judgment against Easy Shipping should be denied. Issues disputed of material facts still exist regarding whether Easy Shipping or Complainant breached the common protocol and procedure.

WHEREFORE, the Respondent, EASY SHIPPING CORPORATION respectfully asks that this Honorable Commission deny the Complainant's Motion for Summary Judgment and award any other relief it deems necessary.

Respectfully submitted,

/s/ Fadi Y. Rafati
Respondent's Attorney

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CERTIFICATION

Under penalties as provided by law pursuant to 735 ILCS 5/1-109, the undersigned certify that the statements set forth in this instrument are true and correct, except as to matters therein stated to be on information and belief and as to such matters the undersigned certifies as aforesaid that he truly believes the same to be true.

Respectfully submitted,

/s/ Fadi Y. Rafati

Respondent's Attorney

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